

23STCV30997 23STCV30997

County: los-angeles

Division: Civil Law and Motion

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Case Number: 23STCV30997 Hearing Date: September 24, 2026 Dept: 400

The Court tenders the

following tentative decision in the matter Elena Lohr v. Kathy Barbata, Los Angeles County Superior Court case number 23STCV30997, set for hearing on September 24, 2026. Elena Lohr (Plaintiff) moves for orders compelling Kathy Barbata (Defendant) to provide responses to Plaintiff's form interrogatories, set two (FROGs) and requests for admissions, set three (RFAs). Plaintiff also requests a total \$7,120 in sanctions. Plaintiff's motion to compel FROGs is granted and her motion to compel RFAs is denied. The Court imposes \$1,175 in sanctions on Defendant's counsel.

If a party

to whom interrogatories are directed fails to serve a timely response, that party waives any objection, the party making the demand may move for an order compelling response, and the Court shall impose a monetary sanction against any party who unsuccessfully opposes such a motion unless they acted with substantial justification. (Id., § 2030.290.) And if a party to whom requests for admission are directed fails to serve a timely response, that party waives any objection, "[t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted," and the Court shall impose a monetary sanction against any party who unsuccessfully opposes such a motion unless they acted with substantial justification. (Id., § 2033.280.)

Here, Plaintiff filed her original complaint on December 20, 2023. She served all relevant written discovery requests via email on June 3, 2026. (Schell Decl. ¶ 5, Ex. A.) Defendant's responses were due within 30 days. On July 13, Plaintiff sent a meet and confer letter. (Id. ¶ 6.) Defendant did not respond as of July 29. (Id. ¶ 7.) Because of Defendant's failure

to respond, Plaintiff's motion to compel discovery pursuant to Code of Civil Procedure sections 2030.290 is proper. However, Plaintiff's motion to compel responses to RFAs is improper, as section 2033.280 does not provide for such relief. Plaintiff moves for Defendant to provide verified and substantive responses without objection pursuant to section 2033.280 in her notice of motion. But section 2033.280 only allows for an order deeming the RFAs admitted. (Code Civ. Proc., § 2033.280, subd. (b).) Plaintiff's only reference to the proper relief is contained within her description of the statute later in the motion. The notice of motion, introduction, and conclusion all request that the Court order Defendant to provide responses. Thus, Plaintiff's motion related to RFAs is improper because she has not provided sufficient notice of the relief sought. Accordingly, only Plaintiff's motion to compel FROGs is granted.

"The court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2030.290, subd. (c).) Such sanctions are authorized even when no opposition to a motion to compel is filed. (Rules of Court, rule 3.1348(a).) Here, Defendant has offered no brief in opposition or explanation as to why responses were not provided. Thus, sanctions are warranted with respect to Plaintiff's motion regarding FROGs.

Plaintiff's

counsel alleges an hourly rate of \$500, which the Court credits. (Schell Decl. ¶ 9.) Counsel testifies to having spent 3 hours drafting the present motion, 1 hour gathering exhibits, 1 hour of anticipated preparation for the hearing, and 2 hours for attending the hearing. Because of the level of experience indicated by counsel's hourly rate, the Court finds these hourly totals to be inflated. The Court credits counsel with 1 hour for preparing the simple motion, 0.25 hours for gathering exhibits, 0.1 hours for preparing for the hearing, and 1 hour for attending the hearing. Accordingly, the Court awards \$1,175 in sanctions ($[\$500 \text{ per hour}] \times [2.35 \text{ hours}] = \$1,175$).

Conclusion:

The Court grants

Plaintiff's motion to compel FROGs. It denies Plaintiff's motion to compel

RFAs. The Court imposes \$1,175 in sanctions on Defendant's counsel, payable to Plaintiff.